

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT: Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

Jail Petition No. 575/2018

(Against the judgment dated 07.10.2015
Passed by the Lahore High Court, Lahore
In Crl. Appeal No. 183-J/2011 and M.R No. 240/2011)

Taimoor Sattar

Petitioner(s)

Versus

The State

Respondent(s)

For the Petitioner(s):

Mr. Ali Hussain Bhatti, ASC

For the State:

Rai Akhtar Hussain, APG, Punjab

Date of Hearing:

11.05.2026

JUDGMENT

Muhammad Hashim Khan Kakar, J. The petitioner namely Taimoor Sattar was tried by the Trial Court for committing murder of his own father and mother namely Abdul Sattar deceased and Shamim Sattar deceased and vide judgment dated 06.04.2011, the Trial Court convicted the petitioner under section 302 (b) PPC and sentenced him to death on two counts with direction to pay compensation of Rs.50,000/- to the legal heirs of deceased on each count u/s 544-A Cr.P.C. or in default thereof to further undergo six months on each count. Being dissatisfied, the petitioner preferred appeal before the Lahore High Court, Lahore which was although dismissed vide impugned judgment dated 07.10.2015, however his sentence of death on two counts was converted into imprisonment for life on each count and benefit of section 382-B Cr.P.C. was extended to him.

2. Briefly stated facts of the case are that on 10.02.2010, within the precincts of the family's residence, the petitioner allegedly bludgeoned his father, Abdul Sattar, and his mother, Mst. Shamim Sattar, to death using a hammer (*Hathori*). The motive attributed to this heinous act was

the petitioner's resentment over his father's refusal to transfer property in his name.

3. Having heard the learned counsel for the respective parties and having perused the entire record with their able assistance, we have incorporated and addressed the submissions and contentions raised during the course of arguments throughout the ensuing discussion and analysis within this judgment, thereby avoiding unnecessary repetition.

4. The grim facts of the prosecution case, as they emerge from the record, involve a rare and distressing instance of patricide and matricide. The case of prosecution rests on extra judicial confession, medical evidence coupled with recoveries as well as forensic evidence and inculpatory statement made by the petitioner in his statement recorded under section 342 Cr.P.C. We have observed that the matter has been reported with promptitude and the parties are already known to each other therefore there is no probability of either manipulation or misidentification. It evinces from the record that the complainant Zafar Iqbal (PW-13) stated in his examination in chief that the petitioner made extra judicial confession before him two times i.e. firstly on the phone and secondly in presence of Muhammad Rafique Sajid (PW-10) when the petitioner was fleeing the place of occurrence in the car. No previous enmity or adverse interest of these witnesses has been brought on record to impeach their character. The testimony of both the said witnesses seems reliable and confidence inspiring as their accounts regarding the material facts narrated have remained consistent and unimpeached despite rigorous cross-examination. The mode and manner of commission of offence as narrated finds significant accord with the medical evidence provided by Dr. Mansora Mirza (PW-7) and Dr. Fakhar-uz-Zaman (PW-8). The crush injuries to the skulls of both deceased persons described by PW-7 and PW-8 showing that the injuries were caused by blunt means, perfectly align with the nature of the weapon recovered. The recovery of weapon of offence (*hathori*) and blood stained clothes of petitioner from his bedroom on his own pointation further substantiate the prosecution story. The forensic evidence provides that the blood stained earth, weapon of offence (*hathori*) as well as the blood stained clothes contained human blood. In addition to this, the post occurrence conduct of petitioner is also not natural and his unexplained abscondence for ten days is also another circumstance which points

towards his involvement in this unfortunate occurrence. It does not appeal to a prudent mind that a person whose parents have been done to death in such a brutal manner would remain silent or remain absconded for ten days without reporting such incident to police. We are well aware of the settled principle that in case of circumstantial evidence, every circumstance should be linked with each other and it should form such a continuous chain that its one end touches the dead body and the other the neck of the accused. Similarly, if any link in the chain is missing then its benefit must go to the accused. We are also aware of the settled principle regarding extra judicial confession that such confession is regarded as a weak type of evidence, and utmost care and caution has to be exercised in placing reliance on such confession. In the instant case, the petitioner was the last seen person leaving the crime scene who absconded for ten days without any explanation. He is the one who made false and contradictory statements to the employer of Abdul Sattar deceased and his uncle/complainant and later made extra judicial confession upon insistence. He is the person who disclosed the place where weapon of offence and his blood stained clothes were concealed and subsequently the same were discovered on his pointation.

5. Another crucial aspect in the instant case is the inculpatory statement of the petitioner recorded under section 342 of Cr.P.C. which is perfectly in line with the other prosecution evidence. The law with respect to inculpatory statements recorded in the statement of accused under section 342 Cr.P.C. is settled that such statement has to be accepted or rejected in its entirety and where prosecution's evidence was found to be reliable and the exculpatory part of such statement was established to be false and excluded from consideration, then the inculpatory part of such statement might be read in support of prosecution's evidence.¹ Similarly, it is also trite law that the statement of an accused recorded under section 342, Cr.P.C. is more reliable as compared to the judicial confession recorded under section 164, Cr.P.C.² The reason appears to be that there is less probability of duress or coercion and the accused is fully aware of the entire evidence recorded against him as the former is recorded before the trial court after the witnesses for the prosecution have been examined and before the accused is called on for his defence whereas the latter is recorded during

¹ Azhar Iqbal v. State (2013 SCMR 383)

² NASIR MEHMOOD Versus The STATE (2015 SCMR 423)

investigation when the accused is in police custody. In the instant case the petitioner categorically made an inculpatory statement and admitted to have committed the murder of his parents through the hammer i.e. in the same mode and manner as established through other prosecution evidence. Similarly, the petitioner neither took any defence plea nor made any other exculpatory statement rather he admitted commission of offence in clear words. Keeping in view all the material, we have no doubt to hold that all the circumstances are linked symmetrically pointing towards one and only conclusion of the guilt of the petitioner.

6. Regarding quantum of sentence, the petitioner failed to demonstrate any mitigating circumstance which could enable this court to take a lenient view. The cold-blooded murder of his own defenseless parents who raised him in such a callous manner, within the secure premises of their own house, is an aggravating circumstance which warrants a severe penalty. This atrocious act of parricide goes against the moral and social fabric of the society and, if not discouraged, has the potential of destroying the family life of a large number of people. For this reason, we have unanimously decided that the sentences of imprisonment for life of the petitioner shall run consecutively.

7. For what has been discussed above, we do not find any legitimate ground to interfere with the well-reasoned impugned judgment passed by the High Court. Furthermore, the impugned judgment does not suffer from any non-reading or misreading of evidence. Thus, upon an overall review of the available record, the petition being without merits is dismissed and leave refused, however the sentences of imprisonment for life on two counts shall run consecutively.

ISLAMABAD
11.05.2026
(Aqib Aman RO)

Approved For Reporting